

DEFINATION AND INTERPRETATION:

The following expression shall have the meaning ascribed to them throughout these terms and conditions, unless there is anything repugnant to the subject or context thereof:

- i. **“LENDINGRUPEE”** – means a product of a registered NBFC and is incorporated under the laws of India and having its registered address in GE 61, 2nd Floor, Rajdanga Main Road, Kolkata West bengal – 700107 and corporate office at B-51, 2nd Floor, New Krishna Park, Vikaspuri, Delhi - 110018 and shall include its successors and assigns.
- ii. **“Application Form”** means as the context may permit and require, the Credit/Loan application form submitted by the borrower, as the context may permit or require, to LendingRupee for applying for and availing of the Loan, together with annexures and addenda and all other information, particulars, clarification, letters and undertaking and declaration, if any furnished by the Borrower/s or any other persons from time to time in connection with the loan.
- iii. **“Borrower/s”**- means and refer to jointly and severally to the Applicants (more particularly described in the Application form) who has/have been sanctioned/granted/disbursed the loan by LendingRupee for availing of the loan and depending upon the nature of the Borrower/s shall, unless repugnant to the context or meaning thereof, be deemed to include
 - a. Where the Borrower is an individual or a proprietorship, his/her heirs, executors and administrators.
 - b. Where the Borrower is an unincorporated body, all the members of such body and their respective successors.
 - c. Where the Borrower is a trust, the trustee (s) for the time being thereof and the successors and permitted assigns of the trust/trustee.
 - d. Where the borrower is a governing body of the society, respective successors of the members of the governing body and any new members and;

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- e. Where the Borrower/s is a company within the meaning of the Companies Act, 1956 or the Companies Act, 2013 (as the case may be), its successors and permitted assigns.
- f. Where the Borrowers is the Karta of Hindu Undivided Family and the borrowing is for the purpose of the Hindu Undivided Family, the adult members for the time being of the said Hindu Undivided Family and their respective heirs, executors and administrators and permitted assigns.
- g. Where the Borrowers is a partnership firm within the meaning of the Indian Partnership Act, 1932, the partner or the partners for the time being of the said partnership firm, the survivor of them and the heirs, executors and administrators of the last surviving partners.
- iv. **“Borrower’s Dues”** means and include the outstanding principal amount of the loan, interest on the loan, all other interest, all fees, costs, charges, expenses, stamp duty and all other sums whatsoever payable by the Borrower/s to LendingRupee in accordance with the loan terms, as well as all other monies whatsoever stipulated in or payable by the Borrower under the loan terms and documents.
- v. **“Charge”** means the aggregate amount payable by the Borrower to the LendingRupee as per the details provided in the application form towards the documentation fee, servicing fee, loan processing fee and the registration fees and such other fee as mentioned or notified by LendingRupee to the Borrower from time to time.
- vi. **“Due Date”** means the date(s) on which any amounts in respect of the Borrower/s dues including the principal amounts of the loan, interest and/or another money, falls due as specified in the Application form and/or the loan terms and/or loan documents.
- vii. **“Effective Date”**- means unless specified otherwise, the date of disbursement of the loan to the Borrower.
- viii. **“Event of Default”** means and includes the occurrence of any one or more of the events of default as stipulated in Clause 5.

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- ix. **“Late Payment”** means payment shall be considered late if received by LendingRuppee 01 day after the due date.
- x. **“Standard Terms and Conditions”**- means these terms and conditions for the grant of the loan to the Borrower by LendingRuppee.
- xi. **“Loan” or “Facility”** means the loan/financial assistance sanctioned by LendingRuppee to the borrower pursuant to receipt of a duly filed in application form for the purposes mentioned in the application form.
- xii. **“Loan Documents”** mean the application form, Standard Terms and Conditions, Declaration and include all writings and other documents executed or entered into or to be executed or entered into, by the Borrower/s or as the case may be, in relation, or pertaining to the loan and each such loan documents as amended time to time.
- xiii. **“Loan Terms”** means and refers collectively to (a) all the terms and conditions set out in the application form, (b) these General Terms and Conditions and (c) all terms and conditions specified in the other loan documents.
- xiv. **“Partner”** shall means third party who has or would refer its customer(s) or prospective customer(s) to LendingRuppee for availing the loan facility.
- xv. **“Rate of Interest”** means the rate of interest applicable for the loan as specified.
- xvi. **“RBI”** means Reserve Bank of India.
- xvii. **“Tenure”** means the duration for which borrowers has opted for repayment of loan.
- xviii. **“website”** means <https://www.lendingruppee.com/>

The expressions “Borrower” and the “LendingRupee”, unless repugnant to the context, shall include his/her/their respective heirs, representatives, beneficiaries, successors, executors, administrators and permitted assigns and shall individually be referred to as “Party” and collectively as “Parties”.

PREAMBLE: -

Naman Commodities Private Limited, a company incorporated under the laws of the India and having its registered office in New Delhi, inter alia owns and operates several online auto-classified portals and are in inter alia, engaged in sourcing customers seeking for financial assistance directly. LendingRupee is a product of NBFC and is engaged in the business of providing financial facilities to various entities and individual. LendingRupee’s terms and conditions to the potential customer referred to by Naman Commodities Private Limited. Borrowers indisputably acknowledge and agree that LendingRupee has extended the financial assistance and would not dispute whatsoever.

I. BORROWER:

The Borrower has seen, read, verified and accepted the loan offer before acceptance of the terms and conditions of this agreement. Terms and conditions of this agreement are tied to the loan offer accepted by the borrower of Naman Commodities Private Limited. The loan offers terms (agreement execution date, loan, sanction date, amount sanctioned, tenure of the loan, interest rate applicable and EMI) would be same as those mentioned or displayed on LendingRupee, and borrower’s identity would be same as retrieved through KYC. Further, for any notice, borrower’s residential address would be utilized as per KYC and necessary documents required by LendingRupee.

The Expression “instant loan”, unless repugnant to the context, shall mean and include Personal Loan Disbursement within 24 hours from the final sanction of loan/facility by LendingRupee.

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The Borrower(s) have agreed to these Standard Confirmation to be taken by clicking wrap method or by physically consenting as the case be and same is constructed as express consent under the existing laws of India. The Standard Terms and conditions set out herein. (The key facts statement shall be applicable to the loan provided/to be provided by

LendingRupee to the Borrower(s).

1. Upon the representation and information provided by the Borrower in the application for the loan made to LendingRupee, LendingRupee hereby agrees to lend to the Borrower the sanctioned amount for the purpose herein above.
2. LendingRupee have the right to recall the loan at any time at its discretion, without assigning any reasons for such recall, the loan with all other amounts stipulated by LendingRupee shall be payable forthwith. The Borrower shall be liable for all amounts due and all costs, interest, additional interest duties, levies etc. incurred for enforcing these standard terms or for undertaking any recovery any recovery proceedings with respect to these Standard terms and accordingly has paid the same, in case of any deficit the Borrower shall be liable for the same.
3. The Borrower agrees to issue Cheque/ SI/NACH (referred to as “repayment instructions”) for the repayment of the loan and is fully cognizant that dishonor of the repayment of the loan is a criminal offence under the law. Additionally, the Naman Commodities Private Limited (LendingRupee) will also accept payment through NEFT/ RTGS/ UPI and the borrower can choose to avail such options when required to make payment towards the loan account. The borrower further agrees that it shall provide NACH document to_Naman Commodities Private Limited (LendingRupee) may direct from time to time.

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4. LendingRupee agent/representative shall never demand for cash repayment of the loan and the borrower agrees that any cash repayment made by the Borrower to any person in such regard is at his/her own risk and not adjustable from loan amount/interest or charges/fees associated with the loan, further Naman Commodities Private Limited (LendingRupee) shall not be held liable for the same. Deposit slip to be submitted by the Borrower to LendingRupee to confirm the payment received.
5. The records maintained by Naman Commodities Private Limited shall be conclusive proof of the amounts outstanding from and due by the Borrower. However, time shall be conclusive evidence against the Borrower. However, nothing herein shall prejudice the LendingRupee's interest or rights if there is any clerical or arithmetical error in the interest calculation due and payable by the borrowers.
6. I/We hereby confirm that as per the sanctioned terms, LendingRupee shall collect the repayment amount including interest.
7. The Borrower hereby agrees and confirms that in case wherein the Borrower avails any third-party service through LendingRupee then the fees/charges applicable for the said third party service shall be deducted provided by such third party. It shall be the sole discretion of the Borrower to opt for such third-party products and services and for any changes/cancellation on booking of such products will need to be done through a relevant third party as per their product T&C. LendingRupee shall not be liable for any claims and damages arising out of or in relation to third party products and services availed by the Borrowers.
8. The Borrower/s shall pay charges, non-refundable upfront transaction/processing fees and other charges as and when applicable,

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9. The Borrower(s) hereby override my/our NDNC registration and give consent to the LendingRuppee or its Authorized Agents and third-party service providers to use information/data provided by the Borrower to contact him through any channel of communication including but not limited to email, telephone, SMS, etc., and further authorize the disclosure of the information contained herein to its affiliates/group companies or their authorized agents or Third-Party Service Provider in order to provide information and updates to Borrower on various financial and investment products and offerings.

All information provided by me about my demographics, employment and salary account is true. I undertake to foreclose the loan immediately in case any of the above provided information is found to be false by LendingRuppee official.

📞 8796331760

✉️ complianceforbnc@gmail.com

🌐 www.ncplbnc.com

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1. BORROWER'S REPRESENTATIONS, WARRANTIES AND UNDERSTAKING:

With the view to induce LendingRupee to grant to Facility/loan to him/her, the Borrower, hereby represents/warrants to/ covenants/ undertakes with LendingRupee that he/she-

- i. Has given complete and correct information and details in the application form about himself/herself.
- ii. Both the parties represent that they are fully authorized to enter into the agreement. The performance of either party will not validate or infringe upon the rights of a third party will not violate or infringe upon the rights of a third party or violate any other agreement between the parties individually, and other person, organization, or business or any law or government regulation.
- iii. LendingRupee's associates, Credit Information companies under and/or any other agency so authorized may use, process the said information and data disclose to LendingRupee in the manner as deemed fit by them.
- iv. Has no pending claims, demands, litigation or proceedings against him/her before any court or authority (public or private)
- v. Shall, in addition to the income/financial statements required by LendingRupee furnish such other information/documents concerning his/her employment, trade, business, profession or otherwise as LendingRupee may require time to time.
- vi. Shall promptly and without requiring any notice or reminder from LendingRupee, repay the facility in accordance with the terms mentioned herein.
- vii. Where applicable, the Borrower shall inform LendingRupee of any likely change in his/her employment as a part of post- disbursement process.
- viii. Shall not stand surety or guarantor of any third-party liability or obligation.
- ix. The Borrower agrees and undertakes not the warrants and represents to LendingRupee that the Borrower shall not utilize the facility for any antisocial, unlawful, or speculative purpose and/or capital market.
- x. Borrower(s) agrees to indemnify and agree to keep indemnified against all claims, costs, losses, damages, charges, expenses and liability of any kind or nature whatsoever and expenses that may be incurred by the lender due to any act or default on the part of the Borrower(s) in respect of the loan and/or for the recovery of the outstanding dues on

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account of failure of the Borrower(s) of any of the terms and conditions herein.

- xi. Borrower(s) liability for repayment of the borrower(s) dues shall, in cases where more than one Borrower(s) have jointly applied for the loan, be joint and several. If the Borrower(s) is an individual doing business as a sole proprietary concern, the Borrower(s) shall be solely responsible for the liabilities of the aforesaid concern and will be personally liable for making repayment/payments of all amounts in respect of the loan to LendingRupee.
- xii. Borrower(s) undertakes to keep LendingRupee informed of any change in the Borrower & apos e-mail ID, Telephone number, Mobile number, and Address and employment details. The Borrower authorizes LendingRupee to update the contact information change and hereby authorizes LendingRupee to contact the Borrower at the updated contact details, by post, telephone, e-mail, SMS/text messaging.
- xiii. The Borrower(s) would commit an event of default (i) if there is a failure to pay the agreed dues or any fee, charges or costs or payment for more than 1 day, from the date when it became due; (ii) if there is breach of terms and conditions agreed herein or a misrepresentation of facts made while availing the loan facility; (iii) if the Borrower is declared insolvent; (iv) if there is initiation of criminal or a judicial proceeding, which the Lender thinks jeopardizes it's interest; (v) there exists any other circumstance, which, in the sole opinion of LendingRupee, If the Borrower(s) commits an event of default, then LendingRupee shall be entitled to (i) call upon the Borrower to pay forthwith the total outstanding balance of the loan account together with interest/fee/penalties; (ii) exercise any other right as deemed appropriate in the interest of LendingRupee.
- xiv. Borrower(s) explicitly grant permission to LendingRupee and/or any other authorized person/representative on behalf of LendingRupee to visit borrower(s) home address, office address and/or any other place of location as disclosed by borrower(s) to LendingRupee at the time of execution of loan Application Form for the purpose of repayment of the Loan Amount and/or to recover any other pending amount in connection to the repayment of the Loan Amount. Further, borrower(s) unconditionally undertake to inform LendingRupee upon any change in the communication details including the home address and/or office address as duly mentioned at the time of execution of this Application Form.

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2. INTEREST, FEES, CHARGES, COST AND PAYMENT:

The parties agree that Interest, Fees, Charges and Payment (Pre-Payment and Partial Payment) would be as per terms stated vide “Schedule 1” of this Agreement.

- 2.1** LendingRupee shall be entitled to debit all other amounts due and payable by the borrower under this Standard Terms (including but not limited to interest tax, fees, stamp duty, processing fees, costs, service and other charges, claims and expenses including expenses which may be incurred by the lender in recovery proceedings) to the Borrower loan account, unless separately reimbursed to LendingRupee by the Borrower. Such amounts form part of the facility.
- 2.2** Borrower(s) is obliged to pay any charge; sum levied on the account due to dishonor of any repayment instructions.
- 2.3** Borrower(s) is obliged to pay any charge, sum, cost, which LendingRupee would reasonably incur pursuant to enforcing to demand of dues, enforcement on breach of contract or on initiation of any recovery proceedings.
- 2.4** Without prejudice to any other terms of this Standard terms, the parties expressly agree that any payment made by the Borrower to LendingRupee under this Standard Terms shall be appropriated by LendingRupee in the following order (i) interest; (ii) Default interest and loss of profit on default amounts (iii) interest and all sums due and payable by the Borrower to LendingRupee under this Standard terms; (iv) principle amount of the loan.
- 2.5** Borrower(s) shall pay a one-time upfront processing fee specified in the “Schedule 1” hereto, which fee shall be deducted by the Lender at the time of disbursal of the loan. The Borrower(s) agrees that the said fee may also be utilized to partially defray expenses that may be incurred by the Lender towards documentation and other incidental expenses incurred in origination of the loan.
- 2.6** Borrower(s) is obliged to pay full outstanding amount, irrespective of any dispute on the facility, including that relating to the interest computation or fee prescribed by the Lender.

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- 2.7 LendingRupee shall be entitled to vary/modify the charges in the event of any default or violation by the Borrower. The final payment for settling this loan contract shall comprise both the principal amount of the loan and interest/penalties/fee if any.
- 2.8 Borrower(s) shall repay/pay the monies in respect of the loan through any modes updated to LendingRupee, like The Electronic Clearing System (Debit Clearing)/ Standing Instruction for direct debit from the borrower(s) or any other mode agreed by LendingRupee.
- 2.9 Borrower agrees that in case Debit instruction has been set at the time of availing loan, any default in auto debit on account of removal of instruction post taking the loan, not maintaining adequate balance in the account for repayment on the scheduled date will be deemed as willful violation of the loan agreement and will invite penal action as per law. Any modification in the date of repayment can be made only in consultation and approval from LendingRupee representative.
- 2.10 Borrower(s) agrees that the due date for the repayment of Loan amount will be fixed. Any delay in the repayment shall entail an additional interest/fee/penal interest as prescribed in "Schedule 1".
- 2.11 Upon delay by the Borrower to pay outstanding amount on or before the Due Date, or breach of any representation or warranty, the Lender shall be entitled to:
- declare all sums outstanding under the Loan and other applicable charges to become immediately due and payable.
 - report the Borrower as a defaulter to Reserve Bank of India and other credit bureau agencies.
 - invoke Repayment Instruments or similar forms obtained from the Borrower, and/ or
 - Exercise any other rights or remedy permitted by applicable law.

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3. INTEREST AND APPORTIONMENT OF PAYMENT:

3.1 The Annual Percentage Rate (APR) as per this Loan Agreement is 588.23 %.

3.2 Interest shall be accrued on the loan/facility at the rate prescribed herein mentioned above the effective date and shall be payable as provided for herein mentioned above. The Borrower agrees to pay the interest in the facility as mentioned hereinabove and which shall be fixed at all times and calculated on the daily basis of the outstanding facility.

3.3 LendingRupee shall be entitled to debit all other amounts due and payable by the Borrower under this Standard Terms (including not limited to interest tax, fees, stamp duty, processing fees, costs, services and other charges, claims and expenses including expenses which may be incurred by the Borrower in recovery proceedings) to the Borrower loan account, unless separately reimbursed to LendingRupee by the Borrower. Such amounts form part of facility.

LendingRupee shall be entitled to levy additional/Penal interest on amounts outstanding i.e., such outstanding balance which is due and payable but has not been paid, from the date when the event of default ceases to exist. It is understood by the Borrower that for default in repayment of interest/principal as it may fall due as per facility terms, Additional/Penal Charges as mentioned hereinabove are applicable on principal outstanding including interest overdue from the day of default for the period the amount is in default.

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4. OTHER CONDITIONS:

- 4.1 LendingRuppee shall, at its sole discretion, obtain a confidential credit report the borrower from its other lenders.
- 4.2 LendingRuppee reserves the right to appoint qualified accountants, management, consultants of its choice to examine the accounts and operations of the Borrower or to carry out a full concurrent/statutory audit. The cost of such an inspection shall be borne by the Borrower.
- 4.3 The Borrower hereby represents, warrants and confirms that aforesaid purpose is a valid purpose, and that purpose does not include the following:
- a. Illegal & Anti-Social Activity
 - b. Speculative investment in real estate
 - c. Investment in securities, debenture or the stock markets
 - d. Money lending activities
 - e. Speculative activity not mentioned above;
 - f. Any other activity for which the facility is not extended

The Borrower further agrees, confirm and undertake that the purpose of use of funds under this facility shall not be changed in any manner during the tenure of the facility, including as may be extended in accordance with its terms; or that such change in purpose shall take place only with written approval of “LendingRuppee”.

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5. EVENT OF DEFAULT AND LATE PAYMENTS:

LendingRupee may send notice or reminder to Borrower, declare all sums outstanding under the loan (including the principal, interest, charges and expenses) to become due and payable in relation to the facility upon the occurrence (in the sole decision of LendingRupee) of any one or more of the following:

- i. The Borrower fails to pay LendingRupee any amount when due and payable under Standard Terms.
- ii. The Borrower defaults in performing any of her/his obligations under these Standard Terms or breaches any of the terms or conditions of these Standard Terms.
- iii. LendingRupee will have the option to charge a rate of interest 1.25% per day if the Borrower fails to make payment after one day of the due date.
- iv. The Borrower, if found to have a fraudulent history or found or alleged to have been involved in document misrepresentation/fraud or proven to be involved in any sort of money laundering activities or any other.

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6. DETAILS OF RECOVERY MECHANISMS:

- 6.1** Naman Commodities Private Limited, an RBI registered NBFC, follows extant rules related to collections practices as laid down under regulation ensuring fair collection practices, prioritizing customer centric, transparency, and borrower education on rights and obligations.
- 6.2** The course of action adopted by Naman Commodities Private Limited post default by the borrower in repaying the scheduled repayment(s) is as follows:
- i. In the event of any delay or default in payment of any amount due and payable by the Borrower in relation to the loan, immediate action taken.
 - ii. The next action taken is to send written communication by letters or by electronic communication LDN (Loan Demand Notice) and LRN (Loan Recovery Notice) through multiple channels.
 - iii. Naman Commodities Private Limited have an inhouse recovery team who are authorized field agents, who visit borrowers at a preferred location, or otherwise at their residence, business or workplace between 8:00 am to 7:00 pm. Agents must disclose their identity and authority during the initial contact, comply with RBI guidelines, follow a prescribed code of conduct, and ensure all recovery actions aligns with applicable laws. In addition to the foregoing, recovery proceedings may be initiated in accordance with applicable laws and regulations.

7. FORCE MAJURE:

LendingRupee shall not be held liable for any delay of or failure to comply with any of the terms of this Agreement, nor shall any such delay or failure be deemed a default when such delay or failure has been caused primarily by any circumstances beyond the reasonable control and without the fault of LendingRupee affected, including but not limited to fire, war, insurrection, government restrictions, act of terrorism, computer system failure, or act of god or such other event which is beyond the control of LendingRupee ("Force Majeure Event"), provided that such affected party uses due diligence to mitigate the effects of the force majeure event on the performance of its obligation under this Agreement.

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8. SEVERABILITY:

In the event any provision of this Agreement is deemed invalid on unenforceable, in whole or in part, the part shall be served from the reminder of the agreement, and all other provision shall continue to be in full force and effect as valid enforceable.

9. WAIVER:

The failure by either party to exercise any right, power, or privilege under the terms of agreement will not be constructed. As a waiver of any subsequent or future exercise of that right, power or privilege or to exercise of any right power or privilege.

10. GRIEVANCE REDRESSAL:

Name, Designation, Email ID, and phone number of grievance redressal officer designated specifically to deal with Fintech/Digital lending related complaints/issues.	<u>Mr. Ajay Verma</u> <u>Grievance Redressal Officer</u> <u>grievance@lendingrupee.com</u> <u>+919650205022</u>
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11. SETTLEMENT OF DISPUTES AND GOVERNING LAW:

Any differences or disputes arising out of or touching the standard terms shall be settled solely between the LendingRuppee and the Borrower, amicably in the first instance. Unsolved disputes or differences shall be referred to a sole Arbitrator, who shall be appointed by the LendingRuppee only and the Borrower shall have no objection to the same.

Arbitration shall be governed by the Arbitration and Conciliation Act 1996 or any statutory modification or re-enactment thereof and the Rules made there under and for the time being in force. The award of the Arbitrator shall be final, conclusive and binding on the parties. The venue for such Arbitrator shall be final, conclusive and binding on the parties. The venue of such arbitration proceedings shall be held in Delhi and shall be conducted in English Language only. Laws of India shall govern this Standard Terms, the documentation pursuant hereto and courts in the city of Delhi having exclusive jurisdiction over all aspects governing the interpretation and enforcement of these Standard Terms and other documentation pursuant hereto.

12.COLLECTION, USE AND RETENTION OF DATA:

12.1 COLLECTION OF DATA:

The Borrower hereby expressly consents to LendingRuppee collecting, receiving, storing, and processing such personal, financial, transactional, and other relevant data and information pertaining to the Borrower as may be required for the purposes of evaluating, sanctioning, disbursing, monitoring, recovering, and administering the loan facility granted under this Agreement. The Borrower further agrees that LendingRuppee may collect such data from the Borrower directly or from any third-party sources, including but not limited to credit information companies, government authorities, and other financial institutions, as may be deemed necessary by the Lender.

12.2 USE OF DATA:

The Borrower acknowledges and agrees that the data so collected may be used by the Lender for the following purposes:

- (a) Assessing the Borrower's creditworthiness and eligibility for the loan;
- (b) Processing the loan application and related documentation;
- (c) Monitoring the Borrower's account and loan performance;
- (d) Reporting to credit information companies, regulatory authorities, or as required under applicable law;
- (e) Undertaking recovery and enforcement actions in the event of default;
- (f) For internal record-keeping, audit, and compliance purposes;
- (g) For any other purpose as may be required for the performance of this Agreement or as permitted by law.

☎ 8796331760

✉ complianceforbnc@gmail.com

🌐 www.ncplbnc.com

Corporate Address:

B-51, Second Floor, New Krishna Park, Vikas Puri, West Delhi, New Delhi, 110018

Registered Address:

2nd Floor, No. GE-61,695, Rajdanga Main Road, P.O. E.K.T.P. P. S.
Kasba, E.K.T, Kolkata, West Bengal, 700107

12.3 RETENTION OF DATA:

The Borrower expressly agrees that the Lender shall have the right to retain all data and information collected in connection with this Agreement for a period of 90 (ninety) days after the full and final repayment of the loan and all dues thereunder by the Borrower. Upon expiry of the said period, the Lender shall take reasonable steps to delete, destroy, or anonymize such data, except to the extent retention is required by law, regulation, or for the purpose of defending any legal claims.

12.4 BORROWER'S RIGHT:

The Borrower shall have the right to request access to, correction, or deletion of their personal data held by the Lender, subject to applicable law and the terms of this Agreement. Any such request may be made in writing to the Lender at its registered address.

13. TERMS AND CONDITIONS:

13.1 Borrower is responsible for providing correct details of bank account and any error will be the sole responsibility of the borrower, and he/she will need to honor the loan agreement and repay as per "Schedule 1".

13.2 In the event of prepayment, appropriate waiver will be made on a pro rate basis across principal, interest, fee etc. per Borrower's accounting principles and the same will be reflected in the personal account of the Borrower.

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14. IMPORTANT OF FOLLOWING REPAYMENT SCHEDULE:

The repayment schedule/payment advice that you receive while taking a loan from Naman Commodities Private Limited is a document that helps you to know the dates when you are required to pay interest, principal and other charges. If any, to Naman Commodities Private Limited for the loan availed and helps you to manage your loan account efficiently and meet the obligations in a timely manner.

Based on the number of days your dues (dues means instalment of principal, interest and other charges if any) remain unpaid and overdue, and your loan account gets classified into various categories. These categories influence your Credit Bureau Score, which may further affect your borrowing capacity in future.

15. RULES AND REGULATIONS:

- 15.1 SMA-0-** If Mr.X does not pay the dues wholly (dues defined as- principal interest, charges or any other amount due) to LendingRuppee by the day end of repayment date, then the loan account becomes overdue on the same date, end of the day shall be tagged as “Overdue” and SMA-0.
- 15.2 SMA-1:** If Mr.X does not pay the dues wholly and the loan account continues to remain overdue the loan account shall be tagged as SMA-1 upon completion of 30 days of being continuously overdue.
- 15.3 SMA-2:** if Mr.X does not pay the dues wholly and the account still continues to remain overdue, it shall be tagged as SMA-2 upon completion of 60 days of being continuously overdue.
- 15.4 NPA:** Further if Mr.X still does not clear the dues wholly as stated above, the loan shall be classified as Non-Performing Asset (NPA) upon completion of 90 days of being continuously overdue.

The above explanation is also applicable for revolving facilities where either outstanding balance remains continuously in excess of the sanctioned limit/drawing power or interest is overdue and not paid on due dates.

It may be noted that any overdue loan account classified as SMA/NPA will have an impact on the Credit Bureau Score of the Borrower.

DISCLAIMER: That the Company and the Borrower has mutually agreed to execute the Loan Agreement in the prescribed language, i.e. English. In case the Borrower requires the Loan Agreement in their respective vernacular language for better understanding of the Loan Agreement, the same can be requested by the Borrower to the Company and the same shall be provided by the Company to the Borrower.

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I also unequivocally undertake that I shall not, directly or indirectly, make or cause to be made any application, representation, or attempt which may result in the creation, imposition, or continuation of any lien, attachment, restraint, or freeze, whether partial or complete, on the bank account(s) of the Lender, after the discharge of my repayment obligations under this Agreement. It is also to mention that any such complaint that is being filed by the borrower either physically or electronically, shall be void ab initio and shall stand null and void.

I also voluntarily declare that any fraud transaction(s) in the borrower's account shall not be subject to the involvement of the Lender and under no circumstances the Lender shall be held liable for any such activity under any "Layer Level" and that no liens, attachments or account freeze shall be represented/imposed on the bank accounts of the Lender.

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